

STATE OF NEW YORK

1910--A

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IN ASSEMBLY

January 14, 2025

Introduced by M. of A. PAULIN, BRONSON, STECK, ROSENTHAL, BENEDETTO, HYNDMAN, LUPARDO, SAYEGH, COLTON, STIRPE, JACOBSON, EPSTEIN, WALKER, SIMON, JACKSON, FORREST, CRUZ, R. CARROLL, HUNTER, MEEKS, McMAHON, LUNSFORD, CLARK, KELLES, MITAYNES, ZINERMAN, REYES, GIBBS, GLICK, MAMDANI, TAPIA -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law and the mental hygiene law, in relation to violations of safety conditions in adult care facilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (b) of subdivision 4 of section 460-d of the
2 social services law, as amended by chapter 733 of the laws of 1994, is
3 amended to read as follows:

4 (b) No operating certificate shall be revoked, suspended or limited
5 without a hearing held in accordance with procedures established by
6 department regulations, which procedures shall require that notice of
7 the time and place of the hearing, and notice of the charges, shall be
8 served in person or by certified mail addressed to the facility at least
9 thirty days prior to the date of the hearing. A written answer to the
10 charges may be filed with the department not less than ten business days
11 prior to the date of the hearing. An operating certificate may, never-
12 theless, be suspended or limited without a hearing for a period not in
13 excess of sixty days, upon written notice to the facility following a
14 finding by the department that the public health, or an individual's
15 health, safety or welfare, are in imminent danger; provided, however,
16 that if the department demonstrates reasonable efforts to commence a
17 hearing within such sixty-day period and to complete such hearing within
18 a reasonable period of time, the hearing officer may authorize the
19 department to extend the period of suspension or limitation for an

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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appropriate period of time, but in no event beyond an additional thirty days.

§ 2. Subdivision 7 of section 460-d of the social services law, as added by chapter 669 of the laws of 1977, paragraph (a) as amended by chapter 719 of the laws of 1989, paragraph (b) as amended by chapter 524 of the laws of 1984, subparagraph 2 of paragraph (b) as amended by chapter 733 of the laws of 1994, is amended to read as follows:

7. (a) The department shall adopt regulations establishing civil penalties of up to one thousand dollars per day to be assessed against all adult care facilities except facilities operated by a social services district for violations of (i) regulations of the department pertaining to the care of residents in such facilities, (ii) paragraph (a) of subdivision three of section four hundred sixty-one-a of this ~~chapter~~ article, or (iii) an order issued pursuant to subdivision eight of this section. The regulations shall specify the violations subject to penalty and the amount of the penalty to be assessed in connection with each such violation and shall specify that only civil penalties of up to one thousand dollars per day per violation shall be assessed pursuant to this paragraph against an adult care facility found responsible for an act of retaliation or reprisal against any resident, employee, or other person for having filed a complaint with or having provided information to any long term care ~~patient~~ ombudsman functioning in accordance with section ~~[five hundred forty four or five hundred forty five]~~ two hundred eighteen of the ~~executive~~ elder law.

(b) ~~[(1)]~~ In addition to any other civil or criminal penalty provided by law, the department shall have the power to assess civil penalties in accordance with its regulations adopted pursuant to paragraph (a) of this subdivision, after a hearing conducted in accordance with the procedures established by regulations of the department. Such procedures shall require that notice of the time and place of the hearing, together with a statement of charges of violations, shall be served in person or by certified mail addressed to the facility at least thirty days prior to the date of the hearing. The statement of charges of violations shall set forth the existence of the violations, the amount of penalty for which it may become liable and the steps which must be taken to rectify the violation and, where applicable, a statement that the department contends that a penalty may be imposed under this paragraph regardless of rectification. An answer to the charges of violations, in writing, shall be filed with the department, not less than ten days prior to the date of hearing. The answer shall notify the department of the facility's position with respect to each of the charges and shall include all matters which if not disclosed in the answer would be likely to take the department by surprise. The commissioner, or a member of ~~his~~ such commissioner's staff who is designated and authorized by ~~him~~ such commissioner to hold such hearing, may in ~~his~~ such commissioner's discretion allow the facility to prove any matter not included in the answer.

(c) (1) Where the facility satisfactorily demonstrates that it either had rectified the violations within thirty days of receiving written notification of the results of the inspection pursuant to section four hundred sixty-one-a of this ~~chapter~~ article, or had submitted within thirty days an acceptable plan for rectification and was rectifying the violations in accordance with the steps and within the additional periods of time as accepted by the department in such plan, no penalty shall be imposed, except as provided in subparagraph two of this paragraph.

(2) Rectification shall not preclude the assessment of a penalty if the department establishes at a hearing that a particular violation, although corrected, ~~endangered or resulted in harm to any resident as the result of~~:

(i) endangered any resident. Endangerment is defined as:

(A) the total or substantial failure of the facility's fire detection or prevention systems, or emergency evacuation procedures prescribed by department safety standard regulations;

~~(ii)~~ (B) the retention of any resident who has been evaluated by the resident's physician as being medically or mentally unsuited for care in the facility or as requiring placement in a hospital or residential health care facility and for whom the operator is not making persistent efforts to secure appropriate placement;

~~(iii)~~ (C) the failure in systemic practices and procedures which shall be defined as widespread or chronic, and material, noncompliance with statutory or regulatory requirements, including but not limited to the rights of residents under section four hundred sixty-one-d of this article;

~~(iv)~~ (D) the failure of the operator to take actions as required by department regulations in the event of a resident's illness or accident;

~~(v)~~ (E) the failure of the operator to provide at all times supervision of residents by numbers of staff at least equivalent to the night staffing requirement set forth in department regulations; or

~~(vi) unreasonable~~ (F) threats of retaliation or taking reprisals, including but not limited to ~~unreasonable~~ threats of eviction or hospitalization, against any resident, employee or other person who makes a complaint concerning the operation of an adult care facility, participates in the investigation of a complaint or is the subject of an action identified in a complaint~~;~~

~~The department shall specify in its regulations those regulations to which this subparagraph two shall apply.~~

~~(3) In assessing penalties pursuant to this paragraph, the department shall consider promptness of rectification, delay occasioned by the department, and the specific circumstances of the violations as mitigating factors.~~

~~(e)~~; or

(ii) resulted in harm to any resident, including but not limited to:

(A) physical harm;

(B) loss or denial of access to money or other personal property, including but not limited to a violation of section one hundred thirty-one-o of this chapter; or

(C) being subjected to (I) conduct by an operator, administrator, case manager, or other employee in a supervisory position that violates the rights of a resident under section four hundred sixty-one-d of this article, or (II) an egregious failure by an operator, administrator, case manager, or other employee in a supervisory position to ensure the rights of a resident under section four hundred sixty-one-d of this article.

(d) In assessing penalties pursuant to this paragraph, the department shall consider promptness of rectification, delay occasioned by the department, and the specific circumstances of the violations as mitigating factors.

(e) Upon the request of the department, the attorney general may commence an action in any court of competent jurisdiction against any facility subject to the provisions of this section, and against any person or corporation operating such facility, for the recovery of any

1 penalty assessed by the department in accordance with the provisions of
2 this subdivision.

3 ~~[(d)]~~ (f) Any such penalty assessed by the department may be released
4 or compromised by the department, subject to and consistent with para-
5 graph (c) of this subdivision, before the matter has been referred to
6 the attorney general, and where such matter has been referred to the
7 attorney general, any such penalty may be released or compromised and
8 any action commenced to recover the same may be settled and discontinued
9 by the attorney general, after considering paragraph (c) of this subdi-
10 vision and with the consent of the department.

11 § 3. Paragraphs (a) and (b) of subdivision 9 of section 460-d of the
12 social services law, paragraph (a) as amended by chapter 558 of the laws
13 of 1999 and paragraph (b) as added by chapter 848 of the laws of 1992,
14 are amended to read as follows:

15 (a) The department shall have authority to impose a civil penalty [~~not~~
16 ~~exceeding one thousand dollars per day~~] consistent with section twelve
17 of the public health law against, and to issue an order requiring the
18 closing of, after notice and opportunity to be heard, any facility which
19 does not possess a valid operating certificate issued by the department
20 and is an adult care facility subject to the provisions of this article
21 and the regulations of the department. A hearing shall be conducted in
22 accordance with procedures established by department regulations which
23 procedures shall require that notice of the determination that the
24 facility is an adult care facility and the reasons for such determi-
25 nation and notice of the time and place of the hearing be served in
26 person on the operator, owner or prime lessor, if any, or by certified
27 mail, return receipt requested, addressed to such person and received at
28 least twenty days prior to the date of the hearing. If such operator,
29 owner or prime lessor, if any, is not known to the department, then
30 service may be made by posting a copy thereof in a conspicuous place
31 within the facility or by sending a copy thereof by certified mail,
32 return receipt requested, addressed to the facility. A written answer to
33 the notice of violation may be filed with the department not less than
34 five days prior to the date of the hearing. Demonstration by the facil-
35 ity that it possessed an operating certificate issued pursuant to this
36 article, article twenty-eight of the public health law or article
37 sixteen, [~~twenty-three,~~] thirty-one or thirty-two of the mental hygiene
38 law at the time the hearing was commenced shall constitute a complete
39 defense to any charges made pursuant to this subdivision.

40 (b) [~~The penalty authorized by this section shall begin to run thirty~~
41 ~~days after the department provides the operator, in writing, with a~~
42 ~~summary of the inspection of the facility by which the department deter-~~
43 ~~mined that he or she is operating an uncertified adult care facility.~~]
44 The submission of an application by the operator for an operating
45 certificate for the facility shall not act as a bar to the imposition of
46 a penalty against the operator of an unlicensed adult care facility.

47 § 4. Paragraph (c) of subdivision 9 of section 460-d of the social
48 services law is amended by adding a new subparagraph (iv) to read as
49 follows:

50 (iv) If the department of health determines, based on a complaint or
51 other facts known to the department, that there is reason to believe
52 that an individual or entity is operating an adult home, enriched hous-
53 ing program, or residence for adults which does not possess a valid
54 operating certificate issued by the department, and that one or more
55 conditions or activities at such facility constitute or are likely to
56 give rise to an immediate danger to the health of the residents, and

1 awaiting a court order pursuant to subparagraph (iii) of this paragraph
2 would be seriously detrimental to the health of such residents, the
3 department of health may, notwithstanding an objection by the operator,
4 administrator or other person in charge, inspect the entire premises,
5 which shall include access to all dwellings on the said property which
6 house tenants/occupants as well as access to such tenants/occupants, for
7 the purpose of ascertaining whether such danger exists or is likely to
8 arise on an immediate basis. The department of health may request the
9 assistance of local law enforcement for purposes of carrying out such
10 inspection and may take any appropriate action if it determines that
11 such danger exists or is likely to arise, including issuing a written
12 notice directing the operator, administrator or other person in charge
13 of such facility to cease or correct the condition or activity at issue.
14 As promptly as possible thereafter, within a period not to exceed
15 fifteen days, the commissioner shall provide the operator an opportunity
16 to be heard and to present any proof that such condition or activity
17 does not constitute a danger to the health of the residents of such
18 facility. The attorney general, upon request of the department of
19 health, shall be authorized to apply to the supreme court in the county
20 in which the facility is located for an order for any appropriate addi-
21 tional relief.

22 § 5. Subdivision 11 of section 460-d of the social services law, as
23 amended by section 154 of subpart B of part C of chapter 62 of the laws
24 of 2011, is amended to read as follows:

25 11. On or before issuance by the department to an adult care facility
26 operator of official written notice of: the proposed revocation, suspen-
27 sion or denial of the operator's operating certificate; the limitation
28 of the operating certificate with respect to new admissions; the issu-
29 ance of a department order or commissioner's order; the seeking of equi-
30 table relief pursuant to this section; the ~~proposed~~ assessment of
31 civil penalties for violations of the provisions of ~~[subparagraph two~~
32 ~~of]~~ paragraph ~~[(b)]~~ [(c)] of subdivision seven of this section or place-
33 ment on the "do not refer list" pursuant to subdivision fifteen of this
34 section, written notice also shall be given to the appropriate office of
35 the department of mental hygiene, department of corrections and communi-
36 ty supervision and local social services districts, and provided further
37 that the department of health shall notify hospitals, residential health
38 care facilities and adult care facilities in the locality in which such
39 facility is located that such notice has been issued. Upon resolution of
40 such enforcement action the department shall within ten days notify the
41 appropriate office of the department of mental hygiene, department of
42 corrections and community supervision, local social services districts
43 ~~[and]~~, hospitals, residential health care facilities and adult care
44 facilities.

45 § 6. Subdivision 12 of section 460-d of the social services law, as
46 amended by section 42 of part B of chapter 58 of the laws of 2004, is
47 amended to read as follows:

48 12. ~~[Social]~~ Hospitals, residential health care facilities, adult care
49 facilities, social services districts and other local government enti-
50 ties established pursuant to this chapter shall be prohibited from
51 making referrals for admissions to adult care facilities that have
52 received official written notice regarding: the proposed revocation,
53 suspension or denial of the operator's operating certificate; the limi-
54 tation of the operating certificate with respect to new admissions; the
55 issuance of department order or commissioner's orders; the seeking of
56 equitable relief pursuant to this section~~;~~ ~~the proposed assessment of~~

~~civil penalties for violations of the provisions of subparagraph two of paragraph (b) of subdivision seven of this section~~]; or the facility's placement on the "do not refer list" pursuant to subdivision fifteen of this section.

§ 7. Section 460-d of the social services law is amended by adding a new subdivision 18 to read as follows:

18. When the department of health issues official written notice to an operator of a proposed action specified in subdivision eleven of this section, and the department determines that there is a condition which constitutes an imminent danger to the health, safety or welfare of any resident, the department may prohibit that operator from admitting any new resident to the facility until the department determines that there is no longer an imminent danger to the health, safety or welfare of any resident.

§ 8. Section 461-c of the social services law is amended by adding a new subdivision 10 to read as follows:

10. The operator of an adult home or an enriched housing program shall provide to prospective residents who inquire about admission, and shall post on its website, a copy of the facility's approved admission/residency agreement.

§ 9. The closing paragraph of subdivision 3 of section 461-d of the social services law, as added by chapter 601 of the laws of 1981, is amended to read as follows:

Waiver of any provision ~~[contained within]~~ of this subdivision by a resident of an adult care facility or by the resident's legal representative or resident representative, with respect to a resident of an adult home, residence for adults or enriched housing program, shall be void.

§ 10. Section 461-e of the social services law is amended by adding a new subdivision 3-a to read as follows:

3-a. Every adult home and enriched housing program shall:

(a) Post in a prominent position in the facility so as to be accessible to all residents and to the general public:

(i) a summary of any report of inspection based on a complaint issued by the department of health to the facility within the previous year which resulted in the payment of a fine or penalty by the facility; and

(ii) notice of residents' right to review reports under paragraph (b) of this subdivision.

(b) Provide to any resident and each applicant for admission an opportunity to review any report of inspection based on a complaint issued by the department of health to the facility within the previous year.

(c) Provide to the resident council a summary of any report of inspection based on a complaint issued by the department of health within fourteen days of receipt by the facility.

§ 11. Paragraphs (b) and (c) of subdivision 2 of section 461-a of the social services law, paragraph (b) as amended by chapter 601 of the laws of 1981 and paragraph (c) as amended by chapter 769 of the laws of 2021, are amended to read as follows:

(b) ~~[The department or a social services district, where appropriate, shall each year conduct a minimum of one full inspection of each adult care facility. Such inspection]~~ An inspection of an adult care facility under this section shall include, but shall not be limited to, examination of the medical, dietary and social services records of the facility as well as the minimum standards of construction, life safety standards, quality and adequacy of care, rights of residents, payments and all other areas of operation. The purpose of any inspection shall be to

1 determine compliance with requirements of applicable provisions of law
2 and regulations of the department.

3 (c) (i) An inspection report shall be made of each inspection which
4 shall clearly identify and indicate in detail each area of operation,
5 including, but not limited to, the premises, equipment, personnel, resi-
6 dent care and services, and whether ~~[each]~~ any such area of operation or
7 any of its component parts is ~~[or is]~~ not in compliance with the regu-
8 lations of the department and all other applicable requirements. It also
9 shall identify those areas of operation or any of its component parts
10 found not in compliance as a result of failure in systemic practices and
11 procedures. The operator shall be notified of the results of the
12 inspection in a manner to be determined by regulations of the depart-
13 ment~~[. Such notification shall contain directions as may be appropriate~~
14 ~~as to the manner and time in which compliance with applicable require-~~
15 ~~ments of law or regulations of the department shall be effected]~~ and
16 shall submit a written plan of correction to the department within thir-
17 ty calendar days from the date the inspection report is received. The
18 department shall notify the operator of the acceptability of the plan of
19 correction within thirty calendar days of the department's receipt of
20 such plan.

21 (ii) The department shall also require the operator of an adult home,
22 enriched housing program or residence for adults to develop, ~~[biannual-~~
23 ~~ly]~~ annually update and implement plans for quality assurance activities
24 for each area of operation. Quality assurance activities include but
25 are not limited to, development and maintenance of performance standards
26 including infection control, measurement of adherence to such standards
27 and to applicable state and local laws and regulations, identification
28 of performance failures, design, and implementation of corrective
29 action. Each plan must also include the creation of a quality improve-
30 ment committee that is charged with meeting periodically, at least once
31 every six months, to review summary findings from monitoring implementa-
32 tion of the facility's plan, evaluating the effectiveness of corrective
33 action policies, and identifying trends and improvement activities.
34 While reviewing facility performance, the committee shall not examine
35 personally identifiable resident incidents. Such committee shall include
36 the administrator or operator of the facility, the resident council
37 president or other resident representative, and representatives from
38 frontline employees from each area of operation.

39 § 12. Subparagraphs (I) and (II) of paragraph 2 of subdivision (i) of
40 section 29.15 of the mental hygiene law, as amended by chapter 168 of
41 the laws of 2010, are amended to read as follows:

42 (I) A patient about to be discharged or conditionally released from a
43 department facility licensed or operated by the office for people with
44 developmental disabilities or from an inpatient facility operated or
45 licensed by the office of ~~[alcoholism and substance abuse]~~ addiction
46 services and supports or the office of mental health to an adult home,
47 enriched housing program or residence for adults, as defined in section
48 two of the social services law, shall be referred only to such home or
49 residence that is consistent with that patient's needs and that operates
50 pursuant to section four hundred sixty of the social services law,
51 provided further that: (A) for a department facility licensed or oper-
52 ated by the office for people with developmental disabilities or for an
53 inpatient facility operated by the office of ~~[alcoholism and substance~~
54 ~~abuse]~~ addiction services and supports or the office of mental health,
55 the facility director retains authority to determine whether the home,
56 program or residence is consistent with that patient's needs and (B)

1 such referral shall be made to the patient's home county whenever possi-
2 ble or appropriate.

3 (II) No patient about to be discharged or conditionally released from
4 a department facility licensed or operated by the office for people with
5 developmental disabilities or from an inpatient facility operated or
6 licensed by the office of [~~alcoholism and substance abuse~~] addiction
7 services and supports or the office of mental health shall be referred
8 to any adult home, enriched housing program or residence for adults, as
9 defined in section two of the social services law, which has received an
10 official written notice from the department of health of: (A) the
11 proposed revocation, suspension or denial of its operating certificate;
12 (B) the limitation of its operating certificate with respect to new
13 admissions; (C) the issuance of a department of health order or commis-
14 sioner of health's order or the seeking of equitable relief pursuant to
15 section four hundred sixty-d of the social services law; (D) the
16 proposed assessment of civil penalties for violations of the provisions
17 of [~~subparagraph two of~~] paragraph [~~(b)~~] (c) of subdivision seven of
18 section four hundred sixty-d of the social services law; or placement on
19 the "do not refer list" pursuant to subdivision fifteen of section four
20 hundred sixty-d of the social services law. Referrals may resume when
21 such enforcement actions are resolved.

22 § 13. The commissioner of health shall develop a plan for posting all
23 the plans of correction and statements of deficiencies for all forms of
24 adult care facilities. Such plan shall include an analysis of the fiscal
25 impact and the time required to post such information. Such plan shall
26 be sent to the chairs of the senate and assembly health committees as
27 well as the director of the budget within one hundred days from the
28 effective date of this act.

29 § 14. Severability clause. If any provision of this act, or any appli-
30 cation of any provision of this act, is held to be invalid, or to
31 violate or be inconsistent with any federal law or regulation, that
32 shall not affect the validity or effectiveness of any other provision of
33 this act, which can be given effect without that provision or applica-
34 tion; and to that end, the provisions and applications of this act are
35 severable.

36 § 15. This act shall take effect on the thirtieth day after it shall
37 have become a law.